

STATUTORY NOTIFICATION: G.S.R. 202(E)

THE LEGAL METROLOGY (PACKAGED COMMODITIES) RULES, 2011

(Framed under Section 52(2)(j) & (q) read with Section 18(1) of the Legal Metrology Act, 2009)

CHAPTER I — PRELIMINARY

1. Short title and commencement: (1) These rules may be called the Legal Metrology (Packaged Commodities) Rules, 2011. (2) They came into force on the 1st day of April, 2011.

2. Definitions: (a) 'commodity in packaged form' means commodity placed in a package of whatever nature, whether sealed or not, so that the contents cannot be altered without tamper; (h) 'principal display panel' in relation to a package, means that part of the package which is intended or likely to be displayed or presented to the customer under normal conditions of sale.

CHAPTER II — PROVISIONS APPLICABLE TO RETAIL PACKAGES

Rule 6 — Declarations to be made on every retail package: Every package shall bear thereon legible, definite and prominent declarations containing:

Clause	Statutory Declaration Required	Legal Obligation
Rule 6(1)(a)	Name & Complete Address of Manufacturer / Packer / Importer	Mandatory on all pre-packaged goods
Rule 6(1)(a)	Common or Generic Name of the Commodity	Prominently displayed on Principal Display Panel
Rule 6(1)(b)	Net Quantity in Standard Units of Weight, Measure or Number	Standard SI metric units (g, kg, ml, l, m, piece)
Rule 6(1)(c)	Maximum Retail Price (MRP) inclusive of all taxes	Single unambiguous printed retail price; Dual MRP strictly prohibited under Rule 18(2)
Rule 6(1)(d)	Month and Year of Manufacture / Packing / Import	Clearly visible on regulatory information panel
Rule 6(1)(e)	Unit Sale Price (USP) per g/kg/ml/litre/metre	Mandatory for packages containing > 1 unit/pack
Rule 6(1)(f)	Country of Origin (for imported commodities)	Required on outer carton and primary container
Rule 6(1)(g)	Consumer Care Officer Name, Address, Telephone & Email	24x7 toll-free / electronic grievance redressal

RULE 9 & SCHEDULE II — AREA-TO-NUMERAL HEIGHT TABLE

Schedule II prescribes the minimum permissible height of numerals and letters for all mandatory declarations on the Principal Display Panel (PDP):

Principal Display Panel Area (A)	Minimum Height of Numerals (Normal)	Minimum Height (Blown/Moulded)
$A \leq 50 \text{ cm}^2$	1.0 mm	1.5 mm
$50 \text{ cm}^2 < A \leq 100 \text{ cm}^2$	1.5 mm	2.0 mm
$100 \text{ cm}^2 < A \leq 500 \text{ cm}^2$	2.0 mm (2.5 mm for Net Qty)	2.5 mm
$500 \text{ cm}^2 < A \leq 2500 \text{ cm}^2$	4.0 mm	6.0 mm
$A > 2500 \text{ cm}^2$	6.0 mm	6.0 mm

RULE 18(2) — STRICT PROHIBITION OF DUAL MRP

Sub-rule 18(2): No manufacturer, packer, distributor, wholesaler or retail dealer shall alter the price once printed, or declare multiple Maximum Retail Prices on an identical pre-packaged commodity. Printing a sticker over an existing pre-printed MRP constitutes a cognizable offence under Section 36(1) of the Act.

PENALTIES UNDER LEGAL METROLOGY ACT, 2009

Section 36(1): Whoever manufactures, packs, imports, sells, distributes, delivers, offers, exposes or has in possession for sale any pre-packaged commodity not conforming to declarations shall be punished with fine which may extend to **twenty-five thousand**

rupees for the first offence, **fifty thousand rupees** for second offence, and for subsequent offences with fine up to **one lakh rupees** or imprisonment up to one year.